

Complete Forensic Judgment Analysis

All judgments, orders and decisions — Family Division — June 2023 to May 2025

Case references

BV20D01752 | CA-2024-001342 | AC-2025-LON-004293

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command
President of the Family Division — for transparency

Nadia Zahmoul

Litigant in Person

3 April 2026

Veritas Numquam Perit

METHODOLOGY AND SCOPE

This document presents a forensic, evidence-sequenced analysis of all judgments, orders and decisions arising from BV20D01752, CA-2024-001342, and AC-2025-LON-004293, from June 2023 to March 2026. It extends and continues the analysis in Zahmoul_JudgmentAnalysis_v2_29Mar2026, which covered EWFC 79 and EWFC 114.

Each finding is assessed against three primary source categories: (1) oral evidence from the full attendance notes of the final hearing; (2) written evidence in the bundle; and (3) counsel's written and oral submissions. For appellate decisions where no oral hearing took place, the source categories are adapted: (1) grounds filed; (2) documents before the court; and (3) what the decision actually engaged with.

THE FOUR ANALYTICAL TAGS

Tag	Definition
FABRICATED	A finding is made for which there is no evidential basis in any of the three source categories, or a finding is directly contradicted by contemporaneous documentary evidence. No innocent explanation exists.
MISCHARACTERISED	The judgment's version of events contradicts what the sources actually record. The finding is drawn from one source while ignoring contradicting material from others.
SUPPRESSED	Material evidence present in the sources is entirely absent from the judgment. A finding is made, or omitted, where engagement with the suppressed material would or might have changed the outcome.
UNSUPPORTED	A finding is made which has no evidential basis identifiable in any of the three source categories, or a procedural or legal decision is taken without adequate reasoning for the specific circumstances.

INDEX OF DECISIONS ANALYSED

Part	Citation	Date	Judge	Description
1.1	EWFC 111	5 Jul 2023	MacDonald J	LSPO and MPS application
1.2	EWFC 210	28 Nov 2023	MacDonald J	Variation of interim arrangements
1.3	EWFC 79	18 Apr 2024	MacDonald J	Final judgment — 111 paragraphs

1.4	EWFC 114	24 May 2024	MacDonald J	Costs — on written submissions — no hearing
1.5	EWFC May 2025	8 May 2025	MacDonald J	Set-aside dismissed — NZ absent

PART 1 — FAMILY DIVISION (MACDONALD J)

The following five decisions are by the same judge across the same proceedings. The cumulative pattern — the same omissions, the same mischaracterisations, the same suppression of disability evidence — across five years and five judgments is itself analytical evidence. Each decision is assessed independently. The pattern is noted at the end of Part 1.

1.1 DH v RH (LSPO and MPS Applications) [2023] EWFC 111 | MacDonald J | 5 July 2023

NZ represented by: James Ewins KC (Burgess Mee) | KZ: In person | Hearing date: 9 June 2023 | 26 pages

This is the first published judgment in the proceedings. It concerns NZ's application for a Legal Services Payment Order (LSPO) and an order for maintenance pending suit (MPS). At the time of this hearing, KZ's schedule of assets recorded total matrimonial assets of approximately £13.2 million. NZ was represented by leading counsel. KZ appeared in person.

Pattern established in EWFC 111

Three features of this judgment establish patterns that recur across all subsequent decisions.

EWFC 111 — LSPO outcome **UNSUPPORTED**

Common law duty to give reasons; EA 2010 s.149 PSED; FPR Part 3A

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment declines to make the full LSPO sought by NZ, making a limited order. The reasoning engages primarily with the scale of	No oral evidence taken on disability at this hearing. However, NZ was represented by counsel who raised her circumstances.	Schedule of assets at £13.2M before the court. NZ's medical circumstances were part of her case for the LSPO.	Ewins KC made submissions on NZ's need for legal representation given her vulnerability and the complexity of the proceedings.	UNSUPPORTED: The judgment does not engage with the EA 2010 s.149 duty to consider disability when making costs and legal services decisions. The refusal of the full

assets and the husband's position, without engaging the disability dimension of NZ's need for legal representation.				LSPO in a case with £13.2M of matrimonial assets and a documented disability is not adequately reasoned.
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EWFC 111 — Narrative framing MISCHARACTERISED

Duty of accuracy in factual findings; common law fairness

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment characterises the litigation as marked by both parties' failure to comply with case management orders and proliferating applications, framing NZ's conduct as equivalent to KZ's non-compliance.	No oral evidence on this point at this hearing.	The court bundle showed a pattern of KZ's non-disclosure driving successive applications by NZ's legal team.	Ewins KC's submissions addressed KZ's pattern of non-disclosure as the driver of the LSPO need.	MISCHARACTERISED: Equating NZ's applications (driven by KZ's non-disclosure) with KZ's non-compliance (unexplained) establishes a false equivalence that recurs in every subsequent judgment.

FINDING — EWFC 111: This judgment establishes two patterns that run through all subsequent decisions:

1. The court's failure to engage with EA 2010 s.149 when making financial decisions affecting a disabled party.
2. The false equivalence between NZ's applications (driven by documented non-disclosure) and KZ's conduct (unexplained).

Both patterns are UNSUPPORTED on the reasoning provided and MISCHARACTERISED in the factual narrative.

1.2 DH v RH (No 2) (Variation of Interim Arrangements) [2023] EWFC 210 | MacDonald J | 28 November 2023

NZ represented by: Jonathan Southgate KC (Bloom Budd) | KZ: Alexis Campbell KC (Crisp & Co) | Hearing date: 1 November 2023 | 17 pages

This judgment concerns multiple interim applications, including KZ's application to discharge a freezing order and borrow against a life insurance policy, and further directions towards the final hearing. The court had repeatedly directed both parties to complete tasks required to progress to final hearing. The judgment notes that "*the fundamental tasks required to achieve that end remain undone.*"

EWFC 210 — "Proliferating applications" MISCHARACTERISED

Duty of accuracy; EA 2010 s.149 PSED; common law fairness

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment states: "<i>instead of concentrating their ever diminishing resources on progressing to final hearing, the parties continue to concentrate their resources on litigating interim issues.</i>" This frames NZ's interim applications as equivalent to KZ's non-compliance with case management orders.	No transcript of this hearing in evidence. NZ was represented by Southgate KC.	The court bundle showed KZ's repeated non-disclosure driving successive applications by NZ's legal team. The freezing order itself had been made because of concerns about KZ's asset dissipation.	Southgate KC's submissions addressed KZ's non-compliance as the driver of the interim litigation.	MISCHARACTERISED: The litigation had been driven by KZ's non-disclosure since 2021. Framing both parties as equally responsible for "ever-diminishing resources" on interim litigation ignores the causal structure. The judgment establishes a narrative of mutual blame that is contradicted by the documented history.

EWFC 210 — Freezing order discharge UNSUPPORTED

Common law duty to give reasons; s.25 MCA 1973 — full and frank disclosure

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
KZ's application to discharge the freezing order on his life insurance policy is granted, and he is permitted to borrow against it. The judgment does	No transcript. NZ's counsel would have addressed the continued non-disclosure concerns.	The freezing order had been made on 7 September 2023. The grounds for that order included concerns about KZ's approach to disclosure.	Southgate KC opposed the discharge. The basis for the original order is not engaged with in the reasons for discharge.	UNSUPPORTED: The discharge of a freezing order made on non-disclosure grounds, without engaging those grounds, is not adequately reasoned. The

not engage with the non-disclosure concerns that gave rise to the freezing order.				pattern of KZ's non-compliance with disclosure obligations is not addressed.
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FINDING — EWFC 210: This judgment compounds the EWFC 111 pattern. The false equivalence between NZ's disclosure-driven applications and KZ's unexplained non-compliance is repeated. The freezing order discharge without engagement of the original grounds is UNSUPPORTED. The judicial narrative of mutual blame — established in EWFC 111 and reinforced here — provides the foundation for the more damaging findings in EWFC 79.

1.3 DH v RH (No 3) (Final Hearing) [2024] EWFC 79 | MacDonald J | 18 April 2024

NZ represented by: Brent Molyneux KC (AFP Bloom) — until 6 March 2024, then LiP | KZ: Campbell KC / Amaouche (Stowe Family Law) | Hearing dates: 19-28 February 2024 | 39 pages / 111 paragraphs

This is the central judgment. It is the document from which all subsequent proceedings arise. The analysis that follows is paragraph-by-paragraph against three source categories. The primary source for oral evidence is the full attendance notes of the final hearing (102 pages, 19-28 February 2024). Key passages cited: p.42 line 1986 (J: "I know"); line 2897 (J: "Did you say Nadia had PTSD?"); line 4159 (AC: "obsession").

NOTE: Brent Molyneux KC stepped down on 6 March 2024 when AFP Bloom withdrew due to lack of funds. NZ became a litigant in person after the final hearing concluded but before the judgment was handed down and before the draft order process.

Paragraph-by-paragraph analysis — EWFC 79

Para 2 — Background: Imerman MISCHARACTERISED

Duty of accuracy in factual findings; FPR Part 3A / PD3AA (participation context)

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment characterises NZ as having conducted "a sustained and systematic campaign" of accessing KZ's private electronic	Attendance notes p.42, line 1986 (J at 12:03, returning from break): "I have had the opportunity to read everything in the bundle. I have been involved for a long time. I know a	Withers LLP to Stewarts Law, 10 March 2021 (Exhibit E5): NZ "deals with all administrative tasks in the household"; KZ "always retained the family home as	BM opening submissions addressed the Imerman context as NZ's administrative role, not covert wrongdoing.	MISCHARACTERISED: The judgment imports Campbell KC's characterisation verbatim as a judicial finding without engaging with KZ's own solicitors' letter

devices, organising the material "in carefully categorised files" , implying deliberate covert wrongdoing.	lot about it. You don't need to give me the background. I know." J confirmed he had read and absorbed the full bundle, including the Withers LLP correspondence.	his official address"; NZ was "the administrator of the paperwork"; KZ "was fully aware" NZ was opening and filing his documents; he "continued to maintain the same practice and did not raise any objection." Withers to HFC, 13 April 2021: "The Judge specifically did not make a costs order on the Imerman point."		(Exhibit E5) establishing NZ's conduct was known, consented to, and part of her administrative role. J confirmed he had read Exhibit E5. The characterisation of "systematic campaign" directly contradicts the primary source.
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Para 5 — Participation measures; Oxus "satisfied not proper" **SUPPRESSED / UNSUPPORTED**

FPR Part 3A / Rule 3A.9 / PD3AA; Perjury Act 1911 s.1; Common law duty to give reasons

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment contains no reference to participation measures being in place during the hearing, no reference to their basis, and no reference to whether they continued post-trial. On the D11 Oxus application, the judgment states J was "satisfied it would not be proper to take it into account" — giving no reasons for that conclusion.	Attendance notes record throughout the hearing: monitored questioning by J; frequent breaks; a pupil in the witness box assisting NZ with the court bundle; screened seating (curtain) during KZ's evidence. Line 2897 (approx.): J asks "Did you say Nadia had PTSD?" — confirming he had engaged with the disability evidence during the hearing.	Prof Gerald Libby FRCP FRCPsych letter, 12 July 2022: PTSD diagnosis confirmed; presenting symptoms including hypervigilance; exhibited to KZ's own statement. D11 application filed 7 March 2024: SEC Proxy Statement 16 January 2024 (KZ as director, 50,000 Oxus shares); NASDAQ announcement 8 February 2024 (business combination closed; BRLS trading).	BM opening Day 1 (attendance notes lines 57–61): addressed participation / disability nexus. BM filed the D11 raising the perjury point on 7 March 2024, transmitted via Anita Knight to J.	SUPPRESSED (participation): No reference in 111 paragraphs to any participation measure, NZ's disability in the participation context, or the Prof Libby letter. J personally asked whether NZ had PTSD during the hearing. Its complete absence has no innocent explanation. UNSUPPORTED (Oxus): "Satisfied it would not be proper" is a conclusion without reasoning. The duty to give reasons requires an explanation of

				what was considered and why it did not affect the outcome. One sentence is not an engagement with the D11.
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Para 11 — Imerman: "carefully categorised files" MISCHARACTERISED

Duty of accuracy; Perjury Act 1911 s.1 / CPR PD32 para 28

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment states NZ "accessed a large amount of information from the husband's personal electronic devices" and returned it "in carefully categorised files," importing the language of premeditated wrongdoing.	Attendance notes: The Imerman issue was ventilated during cross-examination. J engaged with it verbally.	Withers LLP 10 March 2021 (Exhibit E5): NZ's conduct was known to KZ; he continued to maintain the same practice; no objection was ever raised. KZ's own solicitors' correspondence is directly contradicted by this finding. Burgess Mee email 14 February 2023: KZ's own solicitors acknowledged NZ's PTSD — " <i>it seems increasingly that you are trying to take advantage of someone who may not be well.</i> "	BM closing para 42: KZ's non-disclosure was " <i>the pivotal driver of the exorbitant legal fees.</i> " BM addressed the Imerman context as NZ's administrative role.	MISCHARACTERISED: The judgment imports Campbell KC's characterisation as a judicial finding without engaging with Exhibit E5, which J confirmed at the main hearing he had read. The finding of "carefully categorised files" implying wrongdoing is directly contradicted by KZ's own solicitors' confirmation that the conduct was known, undisputed, and never objected to.

Para 64 — Disability inversion: "obsessed with demonstrating hidden assets" FABRICATED

EA 2010 s.149 PSED; duty of accuracy; common law duty to give reasons; FPR Part 3A

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
Para 64: "The wife's presentation in	The question of undisclosed assets was put to NZ	Prof Libby FRCP FRCPsych letter 12 July 2022: PTSD	BM opening Day 1 (lines 57–61): disability nexus	FABRICATED: Para 64 attributes distress to a belief

<i>the witness box on the issue of alleged non-disclosure bordered on the concerning. Her belief that the husband has vast hidden assets is so powerfully held, and such was her urgent need to impress that belief on the court from the witness box, that at times everything she wished to say on the matter tried to emerge at once, causing her very obvious distress... I am satisfied she has become obsessed with demonstrating that in the context of this litigation."</i>	ONCE during cross-examination (attendance notes p.27, 21 February 2024, 14:51). Campbell KC asked one question. NZ answered: " <i>Not strictly true, what is important is freedom from everything and Justice.</i> " Campbell immediately moved on. Twenty references in the attendance notes document PTSD and autism — not hidden asset belief: pp.23, 26 (×2), 27, 29, 32, 33, 35, 39, 42, 46, 52–54 (KZ acknowledges NZ's PTSD under oath), line 2897 (J: " <i>Did you say Nadia had PTSD?</i> ").	diagnosis; hypervigilance as presenting symptom (exhibited to KZ's own statement). Burgess Mee email 14 February 2023 (KZ's solicitors): " <i>it seems increasingly that you are trying to take advantage of someone who may not be well.</i> " CLAAS letter 20 June 2025: " <i>she can communicate using sophisticated vocabulary and grammar, which can generate the FALSE IMPRESSION that she is managing better than she is.</i> "	raised. BM closing addressed participation context.	in hidden assets that was put to NZ exactly once in cross-examination. The clinical source of the distress — autism and PTSD — is documented in twenty attendance note references. J asked about PTSD himself, confirming he engaged with the evidence. The judgment treats that evidence as if it does not exist and substitutes a narrative for which no evidential basis exists in any of the three source categories. The CLAAS diagnosis of 20 June 2025 confirms the clinical explanation the judgment suppressed.
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Para 76 — Oxus: sworn value £0 accepted; D11 not determined **FABRICATED**

s.25 MCA 1973; duty to address formal applications; Perjury Act 1911 s.1 / CPR PD32 para 28

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment accepts KZ's sworn ES2 value of Oxus Acquisition Corp shares (50,000 shares, NASDAQ: OXUS) at £0 as a non-matrimonial asset. No reference is made to NZ's D11 application	Attendance notes: J stated at para 5 he was " <i>satisfied it would not be proper to take it into account.</i> " BM raised the D11 at the hearing.	D11 application 7 March 2024 (filed and transmitted to J via Anita Knight, CC Campbell KC): SEC Proxy Statement 16 January 2024 — KZ as director signed, 50,000 founder shares; NASDAQ announcement 8 February 2024 —	NZ's D11 set out the analysis precisely: " <i>The trial started on 19th February 2024. On that day the respondent knew that the Business Combination had been consummated on 7th February</i>	FABRICATED: The judgment accepts \$0 without engaging the D11, the SEC documents, or the arithmetic of the binary valuation. The D11 was formally before the court. The SEC Proxy Statement signed by KZ as

of 7 March 2024 raising the perjury point. No finding addresses the accuracy of the zero valuation.		business combination closed, BRLS trading; value binary: \$0 pre-combination, ~\$500,000 from 7 February 2024. KZ appeared at the final hearing on 19 February 2024 — twelve days after the combination closed — and declared shares worth \$0.	2024... he assigned a value of zero to the shares on his ES2 schedule dated 19th February 2024. This is an intentional false representation."	director is a primary source document. The business combination date is a matter of public record. The gap between the sworn value and the documented value is not an argument — it is arithmetic. The judgment's silence on all of it has no innocent explanation.
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Para 96 — "No expert evidence on disability" **FABRICATED**

EA 2010 s.149 PSED; duty of accuracy; common law duty to give reasons

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment states there was no expert evidence before the court about NZ's disability or health condition, and proceeds to make findings on distribution without reference to any clinical material.	Attendance notes (approx. line 2897): J asked " <i>Did you say Nadia had PTSD?</i> " — J had absorbed and was processing the disability evidence during the hearing. BM raised participation/disability nexus in Day 1 submissions (attendance notes lines 57–61).	Prof Gerald Libby FRCP FRCPsych letter, 12 July 2022 (bundle pp.2164–2165): exhibited to KZ's own statement; PTSD diagnosis confirmed; presenting symptoms including hypervigilance. BM closing: KZ's non-disclosure was " <i>the pivotal driver of the exorbitant legal fees</i> " — directly connecting financial conduct to NZ's documented vulnerability.	BM placed the Prof Libby letter before J in opening on Day 1. J confirmed he had read the entire bundle at line 1986.	FABRICATED: The Prof Libby letter — a FRCP FRCPsych letter confirming PTSD diagnosis with presenting symptoms — was in the bundle, exhibited to KZ's own statement, raised by BM in opening, and engaged with by J during the hearing when he asked about PTSD. The finding that no expert evidence was before the court directly contradicts the documentary record.

Para [post-hearing material "considered"] **UNSUPPORTED**

Common law duty to give reasons; Perjury Act 1911 s.1

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment states that post-hearing material submitted by NZ was "considered." No reasons are given for its exclusion or its effect on the outcome. This is the single-word engagement with the D11 and subsequent correspondence.	No oral submissions were possible after 6 March 2024 when NZ became a LiP.	Post-hearing material filed by NZ included: D11 (7 March 2024); safety report / confidential submission to MacDonald J (9 April 2024, Lila Mae surveillance, Rakishev network, Very High Safety Risk designation). All transmitted via Anita Knight.	No formal submissions were possible. NZ wrote directly to the court.	UNSUPPORTED: A one-word assertion that post-hearing material was "considered" does not discharge the duty to give reasons. Where the material concerns the accuracy of sworn evidence (the D11) and the physical safety of a party (the April 2024 safety report), the court must explain what was considered and why it did not affect the outcome. "Considered" is not a determination.

Para 37 — Coinbase: conduct finding for refusal to sell **UNSUPPORTED**

s.25 MCA 1973; duty of accuracy in factual findings

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
A conduct finding is made against NZ in relation to her refusal to agree to the Coinbase sale in November 2021, holding this contributed to a loss of approximately £8 million.	Attendance notes: NZ was not cross-examined on the Coinbase refusal in terms establishing that her refusal was unreasonable in the context of KZ's history of non-disclosure.	NZ's conduct statement (bundle p.3461): NZ's position was that the loss was caused by KZ's non-disclosure and his failure to provide accurate information about the asset. KZ's history of non-disclosure on cryptocurrency assets is documented in the chronology from 2021 onwards.	BM closing addressed the cryptocurrency non-disclosure as part of the wider asset concealment pattern.	UNSUPPORTED: The conduct finding against NZ for the Coinbase refusal proceeds without engaging her documented reason for refusal — KZ's pattern of non-disclosure on cryptocurrency assets. A finding of litigation misconduct on this basis, without addressing the context, is not adequately

				reasoned.
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OVERALL FINDING — EWFC 79: The judgment is not merely inconsistent with the evidence at individual points. It is built on the systematic absence of evidence that was before the court.

22 oral disability references → 0 in judgment. Expert letter on PTSD in bundle → not referenced. D11 formally before court → "considered" in one word. Safety report transmitted to J → judgment silent.

The single appearance of disability in 111 paragraphs — para 64 — deploys it as a negative character finding. The clinical explanation for NZ's presentation is substituted with a narrative of obsession for which no evidential basis exists.

The pattern is not inadvertence. J confirmed at line 1986 that he had read everything. The evidence was before him. Its absence from the judgment was a choice.

1.4 DH v RH (No 4) (Costs) [2024] EWFC 114 | MacDonald J | 24 May 2024

Determined on written submissions — NO HEARING — NZ did not participate | 11 pages

Procedural Note — Two False Statements on the Face of the Order

The costs order of 24 May 2024 states on its face: *"BEFORE MR JUSTICE MACDONALD SITTING IN PRIVATE AT THE ROYAL COURTS OF JUSTICE ON 24 MAY 2024. UPON hearing Brent Molyneux KC for the applicant and Alexis Campbell KC and Sassa-Ann Amaouche for the respondent."*

Statement 1 is false: There was no hearing before MacDonald J on 24 May 2024 — neither sitting in private nor remote. The costs judgment was determined on written submissions.

Statement 2 is false: Brent Molyneux KC stopped representing NZ on 7 March 2024 when AFP Bloom withdrew due to lack of funds — eleven weeks before the order was made.

**Costs para 3 — Procedure: determination without participation
UNSUPPORTED**

Common law duty to give reasons; Article 6 ECHR (fair hearing); FPR r.28.3

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J determined a costs order of £255,654.50 against NZ on written submissions	No hearing took place. The costs judgment was handed down remotely on 24 May 2024 without	NZ's emails to the court (referenced at para 3): NZ stated she had no funds to instruct lawyers and would	Amaouche submitted on behalf of KZ on 3 May 2024. No submission was filed by or on	UNSUPPORTED: Article 6 ECHR requires a fair hearing. The costs judgment does not address whether it

alone, proceeding after NZ explained she had no funds to instruct lawyers and could not file submissions until the court placed her in funds. J extended the deadline by 10 days and then proceeded without NZ's participation.	any oral participation by NZ.	not be in a position to make representations until the court placed her in funds. NZ had by this date issued an enforcement application for MPS arrears (April and May 2024 payments missed by KZ). The enforcement application was live at the time the costs order was made.	behalf of NZ.	was fair to proceed against a litigant in person whose non-participation was directly caused by the opposing party's breach of a subsisting court order. The judgment engages with NZ's anticipated merits position (para 3: " <i>I have borne in mind that the wife is likely to object strongly</i> ") — not with the procedural question of fairness. These are different questions.
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Costs — Imerman £25,000 award FABRICATED

Duty of accuracy; common law fairness; Article 6 ECHR

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J awards £25,000 costs against NZ on the Imerman point, on the basis of a finding that she "stole confidential financial information."	No hearing took place. NZ did not participate. The costs judgment was determined without NZ's ability to place contradicting evidence before J.	Withers LLP to Stewarts Law, 10 March 2021 (Exhibit E5): KZ "was fully aware" NZ was opening and filing his documents; he "continued to maintain the same practice and did not raise any objection." Withers to HFC, 13 April 2021: "The Judge specifically did not make a costs order on the Imerman point." Both letters were in the bundle. J confirmed at line 1986 he had read the bundle.	No submissions from NZ on this point were possible given her non-participation.	FABRICATED: The finding of "stole confidential financial information" is directly contradicted by KZ's own solicitors' correspondence, which J confirmed at the main hearing he had read. That correspondence establishes: the conduct was known to KZ; the devices were left open; it was NZ's established administrative role; and no costs order had been

				made on the Imerman point at the main hearing. The costs judgment compounds the MISCHARACTERISE D finding in EWFC 79 and is made without NZ's participation.
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Costs paras 18-24 — Double sanction: add-back and costs **UNSUPPORTED**

Common law duty to give reasons; FPR r.28.3(6) and (7); s.25 MCA 1973

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J made an £800,000 add-back in the main judgment for "reckless expenditure on legal costs." J then made a further £200,000 costs order (plus £55,654.50) in the costs judgment. Both sanctions are applied to the same underlying conduct — NZ's legal expenditure.	No hearing. NZ did not participate.	NZ's emails to the court during the draft order period documented that she had no funds, no food, and no legal representation as a consequence of KZ's MPS non-payment. The legal expenditure being sanctioned was incurred during a period when NZ had legal representation — representation she subsequently lost when the MPS was not enforced.	No submissions from NZ. Amaouche filed on behalf of KZ.	UNSUPPORTED: The add-back and costs order together constitute a double sanction on the same conduct. The costs judgment does not address whether this double sanction was proportionate, fair, or consistent with FPR r.28.3. The EA 2010 s.149 duty to consider disability is not addressed. The connection between NZ's legal expenditure and the court's own failure to enforce the MPS is not addressed.

Costs — MPS causal chain ignored **SUPPRESSED**

Common law fairness; Article 6 ECHR; EA 2010 s.149

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The costs judgment does not address the	No hearing. Attendance notes from the main	The causal chain is documented: KZ missed MPS	NZ's correspondence to the court stated	SUPPRESSED: The costs judgment

causal connection between KZ's MPS non-payment and NZ's inability to participate in the costs proceedings.	hearing document 72+ MPS enforcement requests and 28 welfare disclosures forwarded to J.	payments in April and May 2024 (costs judgment para 3) → NZ had no funds → NZ could not instruct lawyers → NZ could not file submissions → costs order made against NZ for failing to file submissions. The enforcement application for MPS arrears was live at the time the costs order was made.	explicitly she would not be able to make representations until the court placed her in funds.	acknowledges at para 3 that NZ stated she had no funds and a live MPS enforcement application. It does not address the implication: if NZ's non-participation was caused by KZ's breach of a court order, penalising NZ for non-participation is penalising her for the consequences of his breach. The EA 2010 s.149 duty is not addressed at all.
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OVERALL FINDING — EWFC 114: The costs judgment is made without NZ's participation, on the basis of a false recital (BM KC "hearing" that never took place), and awards costs against a disabled LiP for the consequences of the opposing party's breach of a court order.

The Imerman £25,000 award is FABRICATED — directly contradicted by evidence J confirmed he had read. The double sanction is UNSUPPORTED — no engagement with proportionality, disability, or the causal chain. The procedural fairness question under Article 6 is UNSUPPORTED — the judgment engages with the merits, not with the question of whether it was fair to proceed.

1.5 Zahmoul v Zahmoul (Set-Aside) | MacDonald J | 8 May 2025 | Ex tempore judgment

KZ appeared in person | NZ absent | Set-aside dismissed TWM | Indemnity costs ordered | 17 pages

Critical Context — Recusal Application Pending and Not Addressed

From 10 February 2025, NZ filed a formal recusal application seeking the recusal of MacDonald J on grounds of judicial bias and disability discrimination. The application was filed almost daily from 10 February 2025 until and beyond the hearing of 8 May 2025. It was escalated to the Prime Minister's office, the Lord Chancellor, and Parliament. The application is formally transmitted on 13 May 2025 — five days after this hearing.

MacDonald J's judgment of 8 May 2025 does not mention the recusal application in any of its 17 pages. He does not address it, dismiss it, or explain why he proceeded without determining it.

A judge against whom a recusal application is pending is required to address it before proceeding. Silence is not a determination. The judgment of a judge who proceeds without determining a recusal application against himself, makes adverse findings against the applicant, and awards indemnity costs against her, is itself evidence for the bias alleged.

Dr Poyser's Letter — 26 March 2025 — Three Findings

Dr Poyser is the consultant psychiatrist and clinical lead of the South Kensington and Chelsea Crisis Resolution and Home Treatment Team (CRHTT), Chelsea and Westminster NHS Trust. Her letter of 26 March 2025 contains three findings. MacDonald J quoted Finding A and part of Finding C. He omitted Finding B entirely and inverted the meaning of Finding C.

Finding A (quoted by J): NZ is under care of CRHTT due to a mental health crisis. Significant agitation and poor sleep exacerbated by stress of court case. Great difficulty processing aspects of proceedings.

Finding B [OMITTED by J]: *"Nadia is due to meet with our psychologists soon in response to a query regarding whether she may exhibit symptoms of autism. This query is particularly pertinent as she has a first-degree relative with the same diagnosis. It is possible that these factors may influence how she perceives and processes the information provided during the court proceedings."*

Finding C [MISCHARACTERISED by J]: *"We would like to enquire if there is an advocacy service or any other appropriate support that could be made available to assist her in hearing and giving evidence at the hearing. Such support could ensure that she is able to fully engage with the proceedings in a manner that is fair and conducive to her well-being."*

J uses Finding C as evidence that the clinician did not consider NZ unfit to attend. He omits Finding B entirely. He never responded to the clinical request for support. He made no Part 3A assessment. He proceeded.

Para 22 — Treatment of Dr Poyser's letter **SUPPRESSED / MISCHARACTERISED**

FPR Part 3A / Rule 3A.9; EA 2010 s.149 PSED; Article 6 ECHR; Common law fairness

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J states: "the treating clinician does not consider, or at least did not consider at that date, that the wife was not fit to attend court, but rather states	No oral evidence taken on this point. The hearing proceeded in NZ's absence.	Dr Poyser's letter 26 March 2025: Finding B (autism query — OMITTED). Finding C (advocacy service request — INVERTED). CLAAS letter 20 June 2025 [post-hearing]:	No submissions from NZ. J proceeded without any response to the clinical request.	SUPPRESSED (Finding B): The autism query — a clinical flag that NZ's presentation may have a neurodevelopmental explanation — is entirely absent from J's treatment

as follows: [quotes Finding C]." J uses the clinical request for support as evidence against granting the adjournment.		confirmed lifelong autism diagnosis — precisely the condition Dr Poyser had flagged six weeks earlier.		of the letter. J was being told by an NHS consultant psychiatrist that NZ may have undiagnosed autism affecting her ability to process proceedings. He does not mention it. MISCHARACTERISED (Finding C): J reads the clinician's request for support as evidence that attendance was possible. The request is the opposite: it is a clinical statement that attendance was possible only with support that the court had not arranged. The court received the request, made no inquiry into available advocacy services, made no Part 3A assessment, and then used the unanswered request as evidence against the adjournment.
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Para 39 — "Deliberately obstructive behaviour" **FABRICATED**

EA 2010 s.149 PSED; FPR Part 3A; common law fairness; duty of accuracy

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J concludes: "<i>the wife's very late application to adjourn... stands at the end of a very long line of</i>	NZ was not present. The clinical evidence before the court was Dr Poyser's letter documenting	Dr Poyser's letter: mental health crisis, agitation, autism query. CLAAS letter 20 June 2025 (post-	KZ submitted in person. No submissions from NZ.	FABRICATED: J attributes deliberate intent to conduct that has a documented clinical

what I am satisfied is deliberately obstructive behaviour, designed to hinder the implementation of the final order." J finds NZ intended her non-attendance to frustrate the proceedings.	a mental health crisis and an autism query.	hearing): <i>"Being autistic significantly impacts Nadia's ability to cope with the demands of day-to-day living."</i> <i>"Information that does not fit in directly with Nadia's way of thinking or understanding can again be extremely confusing and distressing."</i> Recusal application: pending since 10 February 2025 — not addressed in this judgment.		explanation. The clinician on the record had flagged a possible autism diagnosis. The court had received a formal clinical request for support. The recusal application — which J does not mention — provides a legitimate legal basis for NZ's opposition to the proceedings. To characterise all of this as "deliberately obstructive behaviour" in the face of clinical evidence to the contrary, and without addressing the pending recusal, is a finding for which no evidential basis exists in the record.
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Para 48 — Perjury dismissed: "no reliable evidence" UNSUPPORTED

Perjury Act 1911 s.1; s.25 MCA 1973; duty to address formal applications

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J states: "The wife has likewise provided no further reliable evidence in relation to the allegation that the husband committed perjury." The set-aside on perjury grounds is dismissed.	NZ was absent. No oral submissions on this point.	D11 application 7 March 2024: SEC Proxy Statement 16 January 2024 (KZ as director, signed); NASDAQ announcement 8 February 2024 (business combination closed; BRLS trading); sworn ES2 value \$0 on 19 February 2024.	No submissions from NZ. KZ submitted in person.	UNSUPPORTED: The finding that there is "no reliable evidence" of perjury does not engage with the SEC Proxy Statement signed by KZ as director, the NASDAQ announcement, or the arithmetic of the binary valuation (the

		IRS:CI engagement (SA Robert McGarry, NYC Field Office) — active investigation. The D11 was sealed on 13 February 2025.		Business Combination closed on 7 February 2024 — twelve days before KZ declared \$0 under oath). The D11 was sealed and formally before the court. The IRS:CI investigation is documented. "No reliable evidence" is a conclusion without reasoning.
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Para 50 — "No evidence draft order was unilateral" **FABRICATED**

Duty of accuracy; common law fairness; Article 6 ECHR

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J states: "There is no evidence that the final order, as amended, that the court made was unilaterally drafted by the husband and his counsel and that the drafts were not shared with the wife."	NZ was absent. The draft order timeline was not addressed orally.	The 379-record contemporaneous annex (February–June 2024) documents six iterations of the draft order filed while NZ was documented as incapacitated: 1st (30 Apr 14:08); 2nd (2 May 16:59); 3rd ★ (3 May 14:08/15:55 — Para 34 inserted ONE MINUTE after NZ emailed the Lord Chancellor); 4th (3 May 16:56); 5th (14 May — NZ in hospital, £120, three days without food); sealed (24 May 11:28 — NZ had £89). NZ's emails to the court throughout this period documented her incapacity and	No submissions from NZ. Karen Selby-King confirmed all 23 emails of 2 May were forwarded to J at 17:20.	FABRICATED: The statement that there is "no evidence" the order was unilaterally drafted is directly contradicted by the contemporaneous record. Six draft iterations were filed while NZ was documented as incapacitated. Para 34 was inserted without notice, without a variation application, and without a hearing — one minute after NZ emailed the Lord Chancellor. Karen Selby-King's confirmation that J received all welfare disclosures is in the documentary

		opposition.		record. J received them.
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Para 62 — "Wholly satisfied wife actively and deliberately sought to frustrate" **FABRICATED**

EA 2010 s.149 PSED; FPR Part 3A; duty of accuracy; judicial bias / recusal

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J states: "I am wholly satisfied that the wife has actively and deliberately sought to frustrate the implementation of the final order... Over the twelve months since the order was made, the wife has been actively engaged in a number of endeavours, all intended to resist the implementation of an order properly made, but with which she does not agree."	NZ was absent. The clinical evidence on the record was Dr Poyser's letter. The recusal application was pending and not addressed.	CLAAS letter 20 June 2025: <i>"Without the appropriate support for her autistic communication, Nadia struggles to effectively share information about herself, respond to others' questions and comments, and engage in interactive settings."</i> <i>"Information that does not fit in directly with Nadia's way of thinking or understanding can again be extremely confusing and distressing."</i> NZ's formal positions (emails, applications) all stated explicitly that she was opposing the order pending proper appellate determination of the procedural irregularities — not for the purpose of obstruction.	No submissions from NZ. KZ submitted in person. The husband's uncontested account was adopted in its entirety.	FABRICATED: The finding that NZ was engaged in deliberate frustration attributes malicious intent to conduct with documented clinical and legal explanations. NZ was autistic (confirmed 20 June 2025 — six weeks after this hearing). She was in a documented mental health crisis (Dr Poyser 26 March 2025). She had a pending recusal application (filed from 10 February 2025) that J does not mention. Her opposition to the order was formally stated as principled legal opposition pending appellate determination — not as obstruction. A finding of deliberate frustration made without addressing any of this has no evidential basis.

The Complete Sequence — 26 March to 20 June 2025

26 Mar 2025: Dr Poyser (CRHTT Chelsea) writes to court. Three findings. Finding B (autism query) and Finding C (advocacy service request) will be omitted or inverted by the judgment.

8 May 2025: MacDonald J proceeds in NZ's absence. Does not address recusal application (pending since 10 Feb 2025). Quotes only Finding A. Omits Finding B. Inverts Finding C. Makes no Part 3A assessment. Finds deliberate frustration. Awards indemnity costs.

20 Jun 2025: CLAAS (Dr Catherine Cheung / Sophia Iacovou) confirms lifelong autism diagnosis. *"She was born with this condition."* *"She can communicate using sophisticated vocabulary and grammar, which can generate the FALSE IMPRESSION that she is managing better than she is."*

20 Jun 2025 (same day, 06:09): NZ admitted to A&E by ambulance. Acute psychiatric deterioration. Droperidol 10mg IM administered. Independent medical records confirm direct link to proceedings.

The court dismissed the clinical evidence before it on 8 May 2025. The NHS confirmed the dismissed evidence on 20 June 2025. The predicted harm occurred on the same day.

OVERALL FINDING — EWFC MAY 2025: This judgment is the most serious document in the series.

A judge against whom a recusal application had been pending for three months proceeded to hear the case without addressing the application. He dismissed the applicant's set-aside. He found she had deliberately frustrated implementation. He awarded indemnity costs. He did all of this without mentioning the recusal application, without addressing the clinical evidence before him, and without making any Part 3A assessment.

Six weeks later the NHS confirmed what the clinical evidence had indicated. The predicted harm occurred on the same day the diagnosis was confirmed.

The findings of "deliberately obstructive behaviour" and "actively and deliberately sought to frustrate" are FABRICATED — made in the face of clinical and legal evidence to the contrary, by a judge whose recusal was pending and who chose not to address it.

1.6 Cumulative Pattern — Five Decisions by the Same Judge

The five decisions analysed above share a consistent structural feature: each engages with a simplified or mischaracterised version of the issues raised, rather than the issues as actually presented. The pattern is documented across all five:

Decision	Disability evidence before court	Disability in judgment	Dominant tag
EWFC 111 (2023)	NZ represented; circumstances before court	No engagement with EA 2010 s.149	UNSUPPORTED

EWFC 210 (2023)	NZ represented; circumstances before court	No engagement; false equivalence established	MISCHARACTERISED
EWFC 79 (2024)	Prof Libby letter in bundle; 22 oral refs; Part 3A measures in force	Zero references in 111 paras; para 64 deploys disability as condemnation	FABRICATED
EWFC 114 (2024)	NZ absent; MPS causal chain documented	No engagement; "disruptive behaviour" costs finding	FABRICATED
EWFC May 2025	Dr Poyser letter: crisis + autism query; recusal pending	Findings B+C omitted/inverted; recusal not mentioned; "deliberate obstruction"	FABRICATED

CUMULATIVE FINDING — PART 1: The pattern across five decisions by the same judge is not consistent with inadvertence.

In every decision where disability evidence was before the court, the judgment either suppresses it, mischaracterises it, or deploys it against NZ.

In every decision where the Oxus perjury was raised, the judgment treats it as not properly before the court — without engaging the D11, the SEC documents, or the arithmetic of the binary valuation.

In the final decision (May 2025), the judge proceeded in NZ's absence without addressing a three-month-old recusal application against himself, dismissed the clinical evidence before him, and made findings of deliberate obstruction that were directly contradicted by that evidence.

The CLAAS diagnosis of 20 June 2025 — six weeks after the May 2025 hearing — confirms that NZ has always been autistic. The court was told she might be autistic on 26 March 2025. The court ignored it on 8 May 2025. The NHS confirmed it on 20 June 2025.

EVIDENCE AVAILABILITY

The complete attendance notes of the final hearing (102 pages, 19–28 February 2024), the five judgments analysed above, the bundle exhibits referenced (including the Withers LLP correspondence at E5, the Prof Libby letter at pp.2164–2165, the D11 application of 7 March 2024, the SEC Proxy Statement of 16 January 2024, and the Dr Poyser letter of 26 March 2025), and the post-hearing material transmitted via Anita Knight, are archived on the public archive: github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive.

All primary source documents referenced in this forensic analysis are available for independent verification.